

DEPARTMENT OF THE NAVY

DLA Aviation

700 ROBBINS AVENUE PHILADELPHIA PA 19111-5098

## Justification for Other Than Full &amp; Open Competition

## 1. Contracting Activity

|                             |                             |                      |                      |                                                |                         |
|-----------------------------|-----------------------------|----------------------|----------------------|------------------------------------------------|-------------------------|
| <b>Contracting Activity</b> | DLA Aviation - Philadelphia |                      | <b>Type</b>          | A1                                             |                         |
| <b>Folder #</b>             | 25259-0004                  |                      | <b>PD #</b>          | N0038325X1519 PFRT4442966004<br>PJAG5451476105 |                         |
| <b>Item Manager</b>         | Walsh, Matthew              | <b>Work Function</b> | Planner              | <b>Phone</b>                                   | <b>Code</b><br>N9812.28 |
| <b>Technician</b>           | Ryan, Owen                  | <b>Work Function</b> | Equipment Specialist | <b>Phone</b>                                   | <b>Code</b><br>N9812.60 |
| <b>Buyer</b>                | Fiocca, Sabrina             | <b>Work Function</b> | Contract Specialist  | <b>Phone</b>                                   | <b>Code</b><br>APAB.42  |

## 2. Description of the Action Being Approved

**Description**      Negotiation and award of a contract through other than full and open competition.

## 3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares   ☐ Repair/Overhaul   ☐ Modification   ☐ Management   ☐ Piece Parts   ☐ Data Report

**Nomenclature**      DIGITAL MODULE      **Quantity**      24

**NSN**      7RH 1680 015614750 E7      **Cage Code**

**P/N**      77A573607P1      **Unit Price**

**Option**      N      **Option %**      **Days**

**Estimated Value**

**Ship To**

**Period of Performance: Expected Final Delivery Date**

12/03/2027

**Line of Accounting**

97 00 XX XX 4930 NC1A 000 85004 0 050120 7R 000000 7PPJ00000000  
 97-11X824228080007408200659162DPFRT44429660040LHW 97-  
 11X824228620007462200659162DPJAG54514761050CUB

## 4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

## 5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC C

This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing/repair knowledge by the qualified source(s) require acquisition/repair of the part from the approved source(s). The approved source(s) retain data rights, manufacturing/repair knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, A/RMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

(03538) Lockheed Martin Per JDRS, this item has been deemed a Critical Application Item (CAI), thus limiting qualified sources. The acquisition of the item listed above will be solicited to Lockheed Martin (03538) because they are currently the only capable source with the technical data required to manufacture, test and certify this item prior to unit delivery and is the sole approved manufacturing source identified in JDRS. All alternate sources must qualify IAW the DCA's procedures, as approved by NAVAIR/NAVSUP WSS Source Development Department prior to contract award. Since the Navy does not possess sufficient rights to information such as drawings, specifications, and test equipment/procedures, a full and open competitive solicitation cannot be supported. NAVSUP-WSS must procure the item from Lockheed Martin (03538).

## 6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsized on the government-wide point of entry on

09/18/2025

and as a result

No responses were received.

**Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows**

The latest configuration has been checked, and all records (ITIMP, JDRS) have been properly aligned, identified, and documented. This item has been deemed a Critical Application Item, thus limiting qualified sources. JDRS lists Lockheed Martin (03538) and Northrop Grumman (70974) as approved sources. Lockheed Martin (03538) is the approved manufacturing source. NGC (70974) is listed in JDRS as the OEM. AIR-4.1.9 did a mass global JDRS update to show NGC as the OEM, however this is an error as Lockheed Martin (03538) is the OEM. NGC (70974) should not be listed as an approved source, they do not have the necessary production, construction, and technical equipment and facilities to be able to manufacture this part, only Lockheed Martin (03538) does. The available technical data is insufficient for the development of new sources. Source Development Department files indicate no Source Approval Request (SAR) has been received from any party interested in becoming an approved source. Lockheed Martin (03538) is the only approved source at this time.

## 7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

## 8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

**Previous J&A**

Previous J&A Available in Workflow Pro

## 9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

## History

|                   |                  |                      |         |                     |            |
|-------------------|------------------|----------------------|---------|---------------------|------------|
| <b>Created By</b> | Matthew Walsh    | <b>Work Function</b> | Planner | <b>Created Date</b> | 09/08/2025 |
|                   | WALSH.MATTHEW.M. |                      |         |                     | 08-SEP-25  |

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

|                                          |                  |                      |         |                                               |            |
|------------------------------------------|------------------|----------------------|---------|-----------------------------------------------|------------|
| <b>Requirements Cognizance Signature</b> | Matthew Walsh    | <b>Work Function</b> | Planner | <b>Requirements Cognizance Signature Date</b> | 09/29/2025 |
|                                          | WALSH.MATTHEW.M. |                      |         |                                               |            |

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

|                                       |                   |                      |                      |                                            |            |
|---------------------------------------|-------------------|----------------------|----------------------|--------------------------------------------|------------|
| <b>Technical Cognizance Signature</b> | Owen Ryan         | <b>Work Function</b> | Equipment Specialist | <b>Technical Cognizance Signature Date</b> | 09/30/2025 |
|                                       | RYAN.OWEN.PATRICK |                      |                      |                                            |            |

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

|                                     |                      |                      |                      |                                                    |            |
|-------------------------------------|----------------------|----------------------|----------------------|----------------------------------------------------|------------|
| <b>Source Validation Cognizance</b> | Johnny Brown         | <b>Work Function</b> | Competition Advocate | <b>Source Validation Cognizance Signature Date</b> | 10/02/2025 |
|                                     | BROWN.JOHNNY.PRESTON |                      |                      |                                                    |            |

I certify that this J&A is accurate and complete to the best of my knowledge and belief

|                                                    |                |                      |                     |                                                         |            |
|----------------------------------------------------|----------------|----------------------|---------------------|---------------------------------------------------------|------------|
| <b>Contracting Officer Certification Signature</b> | Janelle Pepper | <b>Work Function</b> | Contract Specialist |                                                         |            |
|                                                    | PEPPER.JANELLE |                      |                     | <b>Contracting Officer Certification Signature Date</b> | 10/23/2025 |

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

|                                                              |                    |                      |                      |                                                                   |            |
|--------------------------------------------------------------|--------------------|----------------------|----------------------|-------------------------------------------------------------------|------------|
| <b>Competition Advocacy Review And Concurrence Signature</b> | Thomas Kreiling    | <b>Work Function</b> | Competition Advocate | <b>Competition Advocacy Review And Concurrence Signature Date</b> | 10/28/2025 |
|                                                              | KREILING.THOMAS.W. |                      |                      |                                                                   |            |

I certify that this J&A is legally sufficient to the best of my knowledge and belief

**Legal Sufficiency  
Review Signature**

Sharif Dawson  
DAWSON.SHARIF.TALIB.1

**Work Function**

Attorney

**Legal Sufficiency  
Review Signature  
Date**

10/28/2025

I certify that this J&A is accurate and complete to the best of my knowledge and belief

**Approval Required  
By Far 6.304  
Signature**

William Cosenza  
COSENZA.WILLIAM.D.JR.

**Work Function**

Competition  
Advocate

**Approval Required  
By Far 6.304  
Signature Date**

10/28/2025